IN THE COUNTY COURT AT LINCOLN

Claim number: 019JE538

BETWEEN:

MSEM UK LTD (Claimant)

and

FISHBONE CONSTRUCTION LTD (Defendant and Claimant on the counterclaim)

WITNESS STATEMENT OF MINDAUGAS GAUDIESIUS

Managing Director of the Defendant

1. I am Mindaugas Gaudiesius, Managing Director of Fishbone Construction Ltd, the Defendant and Claimant on the counterclaim ("Fishbone"). I make this statement from my own knowledge. Where I was told something by someone else, I say who told me.

Background

2. Fishbone is a labour supply company. We have worked with Macdonald Joinery & Construction Ltd ("Macdonald Joinery") for about 13 years. I deal mostly with its owner, David Macdonald, and mostly by telephone.

3. On the BBC Cardiff toilet refurbishment project at BBC Central Square (our reference FC2520), Macdonald Joinery was the main contractor and Fishbone was its subcontractor. Before 26 November 2025, Macdonald Joinery asked me by telephone that Fishbone take over the site management of the project. On 24 November 2025 Andrew Macdonald of Macdonald Joinery wrote that works would start on Monday 1 December 2025 and that its "Site Managers" for the pre-start meeting on 26 November would be Mr Davidans and me (exhibit MG11). [CONFIRM: you accept you were named as a site manager; paragraph 9 says what your role was.]

4. I had known Mr Mikheil Davidans for a long time. He had worked for Fishbone on other sites before, and invoiced Fishbone through his company, MSEM UK Ltd. I offered him the site manager role on this project personally. The agreement was verbal, at £300 a day. There was no written agreement, and no fixed end date for his own engagement was agreed.

5. When I received his first invoice for this project, he had included fuel and accommodation. I spoke to him and agreed to pay them. I knew that he left the site around noon every Friday to travel home. In the same conversation I agreed to pay a full day for Fridays on one condition: that all the works were completed on schedule. That condition applied only to the Friday full days. It was not put in writing.

6. The draft programme dated 19 November 2025 produced for Macdonald Joinery, which Mr Davidans had, shows a snagging meeting on Monday 9 February 2026 and handover on Friday 13 February 2026 (exhibit MG2). On 4 February 2026 Dave Newell of J4 Projects, the project manager on the programme, asked Macdonald Joinery and the client by email whether "Thursday next week" suited for a "final site meeting for the WCs". On 6 February David Macdonald forwarded that email to me with the words "Please see date for snag and handover of the toilets", and I replied the same day: "Yes, Thursday perfect" (exhibit MG12). Thursday was 12 February 2026. [CONFIRM: v0.7 said J4 told you this by telephone and that it was not in writing. The emails show it was in writing. Say whether there was also a telephone call from J4, and whether you know the 9 February meeting was cancelled or simply replaced by the 12 February meeting. Delete this note once decided.] Works started on Monday 1 December 2025, and Mr Davidans was on site that morning carrying out inductions (exhibit MG11).

7. Fishbone supplied the labour. A team of two joiners, I. Bulakevych and R. Drulit, were provided to Fishbone through Torin Construction Ltd, and Raitis Bikovs worked as a Fishbone subcontractor. He worked on the Central Square project first: the site register, where he signs as "Raitis", shows him there on 2, 3, 4 and 5 December 2025. He started on the Roath Lock project on 8 December 2025, and the Torin joiners arrived at Central Square the same day (the register shows I. Bulakevych and R. Drulit from 8 December). His own emails put him back at Central Square on Wednesday 11 February and Monday 16 February 2026. [CONFIRM: why Fishbone moved him and brought in the Torin joiners on 8 December, and that his emails of 17 and 24 February are right about 11 and 16 February.] Fishbone chose and paid for all of them. Mr Davidans, as site manager, directed them on site (exhibit MG4).

8. On his first day on site, I agreed with him that every day he would send me photographs of the progress and photographs of the site sign-in register, so that I could check who was on site. He did this through a Telegram group chat for the project, which I created on 1 December 2025. This is how Fishbone runs its projects: I set up a Telegram group for each one. The register photographs he sent run from 2 December 2025 to 6 February 2026 (exhibit MG1). Each photograph shows the sheet as it stood, so together they cover almost every working day: Mr Davidans appears on the register on 37 of the 39 working days from 2 December to 6 February, except 16 December and 19 January, which are not on any sheet he photographed. [CONFIRM my count from the 20 photographs: Fishbone's operatives appear every day from 8 December (two operatives, I. Bulakevych and R. Drulit); from 2 to 5 December the register shows only Mr Davidans and "Raitis".] The group's members were Mr Davidans, Andrejus Prutkovas and me, and from 2 December Mr Bikovs. The chat shows that Mr Davidans posted photographs and videos on about 21 days between 2 December and 6 February, and that he never wrote any message in the group about defects, gaps, panels or labour. The group had a "Delivery" topic, which I created on 1 December 2025. This is how Fishbone keeps proof of deliveries: the site

manager posts a photograph of each delivery, so that we can show when and what arrived if anyone asks. This is Fishbone's common practice: the same topics are used on other projects, for example FC2512 Parfums de Marly and FC2602 BBC Roath Lock Toilet upgrade, where the site managers post their deliveries (exhibit MG17). Mr Davidans knew the topics. He was the site manager on FC2516 WoS Tissot Stratford in October and November 2025, in a group with the same four topics including Delivery, and he used the Sign-in and Progress pictures topics there every day. On that project no deliveries were recorded in the Delivery topic by anyone. On this job he posted nothing in the Delivery topic at any time (exhibit MG15), although Macdonald Joinery made deliveries to the site during the job. His last post was the sign-in sheet for 6 February, at 15:25. He posted nothing between 7 and 12 February (exhibit MG15). Nobody wrote in the group after 12 February 2026. I removed Mr Davidans from the group on 24 October 2026, to keep the evidence, and exported the chat; I exported it again in full on 2 November 2026 (exhibit MG15). [CONFIRM: why you removed him (for example, so that messages could not be deleted). Who "Anastasia" was, removed on 7 January. Check the figure "about 21 days" against the photo files before you swear to it. For the Delivery topic: I recommend keeping the Tissot sentence, because MSEM will see the empty Tissot Delivery topic anyway if you rely on that chat; the other option is to leave Tissot out and rely only on Parfums and Roath Lock for the practice and on his para 1 for his earlier work. Say whether deliveries did arrive at Tissot Stratford and why nobody recorded them. Say when and how you told Mr Davidans to post deliveries there (on 1 December, in the group, by phone), and whether you or Andrejus ever told him on Tissot or on this job to post deliveries. Mr Davidans says his duties included arranging deliveries and maintaining site documentation (his paras 4, 9 and 14), which is why the empty topic matters. The export has 20 posts in Sign-in, 6 in Site diary, 104 in Progress pictures and none in Delivery.]

9. In December 2025 I was the site manager at the Roath Lock project and Mr Davidans was the site manager at Central Square. In the first working week of January 2026, Macdonald Joinery told me by telephone that they were unhappy with the costs and that one site manager was enough to cover five operatives across the two sites. I therefore left Mr Davidans as site manager on both sites. On 7 January 2026 Liam Price of EMCOR, the client's project manager, wrote to Macdonald Joinery, copying me, that he had been told Mr Davidans was managing both sites and that he needed a site manager at both projects at all times. On 12 January 2026 Andrew Macdonald confirmed that Oleksii Starovoitov was on site at Roath Lock as an English-speaking working foreman (exhibit MG13). Mr Davidans spent most of his time at Central Square, and went to check progress at Roath Lock only when I asked him. [CONFIRM: that you said this to Mr Davidans and when. If Mr Starovoitov took over the Roath Lock foreman role on 12 January, say so here. On 21 January you wrote to Macdonald that "Mikheil and Alex every morning will have little meetings with FM"; add if wanted, as it shows you told Mr Davidans to brief the facilities team.]

February 2026

9A. On 2 February 2026 I drove to Cardiff in Fishbone's van NJ17CYK with Andrejus Prutkovas. I arrived that day and visited the Roath Lock project that evening. I did not see Mr Davidans at Roath Lock that afternoon or evening. On 3 February I spent three to four hours at the Roath Lock project with Dainius Drulia, who started there that day. Andrejus Prutkovas and I then visited Mr Davidans at Central Square, and we asked him about completion. We returned to Newcastle that night. [CONFIRM: (a) your arrival time on 2 February and whom you saw at Roath Lock. Mr Davidans says you attended briefly on 2 February about a project vehicle (his para 33); you say you did not see him that day. (b) On 3 February: the times you were at Roath Lock and at Central Square, how long you stayed with Mr Davidans, whether he walked you round, what the works looked like, what he showed you, what you asked and what he answered, and what was said about labour, gaps, silicone or panels, and whether you offered labour. (c) Where Andrejus was during the morning (his phone rang Mr Drulia at 11:09, 12:21, 15:30 and 15:31), and why your phone rang Mr Davidans at 09:24 and 13:55 and his rang yours at 10:47 that day. (d) When you left Cardiff: the tracker shows the van driving north that evening. Mr Davidans puts the visit and a cafe meeting on 9 and 10 February (his paras 42-45); your Chronology of 15 May put it on 9 February. Keep this paragraph to what you remember. Renumber later paragraphs when final.]

10. On or about 30 January 2026 there was a pre-handover meeting at the site. I did not attend it. Attending site meetings was part of Mr Davidans's duties as site manager. The same day, after the meeting, Mr Davidans telephoned me. He said he needed to finish the works and that he would be ready for handover. He did not say which works. He did not tell me about any defects or snagging items, and he did not ask for more labour or help.

11. The photographs Mr Davidans posted in the Telegram group on 6 February 2026 showed the cubicles with the partitions up and the toilets and basins in. The dark panels behind the toilets are part of the toilet system and were in place. The white panels, which are Venesta laminated panels, and the five cubicle doors, which Macdonald Joinery made and delivered, had not yet been fitted. The photographs did not show the defects found later. I looked at them at the time and I thought only a small job was left. The doors and the white Venesta panels are made off site and delivered to site by Macdonald Joinery, and the hinges and handles are already fitted, so what remained was putting the white panels in place and hanging five doors. In my experience that takes two operatives three days at most. I asked Mr Davidans whether he could finish: first when Andrejus Prutkovas and I visited him at Central Square on 3 February, then on my telephone call on 5 February, and then on each call before 12 February. [CONFIRM: (a) what he answered each time. (b) What you asked him on 3 February at Central Square, with Andrejus, and what he answered; para 9A has the day's detail. (c) When Macdonald Joinery delivered the doors and the Venesta panels (Telegram cannot show it: the Delivery topic is empty, so ask Geoff Smith for the delivery note) (Geoff Smith's email of 5 January 2026 refers to Venesta

laminated panels hung on aluminium split battens, so say whether fitting the battens is part of the three days). Macdonald made the doors, so ask whether the bubbles on the doors (item 12 of the snagging list) and some of the damaged edges are a supply defect, and whether any of Fishbone's remedial costs in para 23 relate to them. (d) The cause of the gaps: you say they came from wrong set-up and poor quality checks when the cubicles were built. Say who did the set-up and the checks and how you know. Mr Davidans says his role was site management and that he did not install (his paras 5 and 99), and item 7 of the snagging list says the cubicles were set out from the back wall and the floor from the front. MSEM may say the photographs showed an unfinished job with five working days left (Monday 9 to Thursday 12 February), so keep this paragraph to what you thought then and why.]

12. On Thursday 5 February 2026 I telephoned Mr Davidans at 09:01 (exhibit MG6). From my experience I thought it was better to have spare hands in the week of the handover, so I asked him whether he needed any spare labour. He told me he was in control. I also asked him whether he was working the coming weekend, the last weekend before handover. He told me he was not working and that there was no reason to, because everything would be completed, and not to worry. He did not ask for more help and did not tell me that there was a problem.

12A. At 15:25 on Friday 6 February 2026 Mr Davidans posted the day's sign-in sheet in the Telegram group with no message (exhibit MG15). The sheet shows three Fishbone names, including his, and three EMCOR names. At 15:35 his phone called mine; the call lasted 2 minutes 37 seconds (MD14). [CONFIRM: what was said. He says he told you about gaps after the partition columns went in and that experienced joiners and a mastic operative were needed (his paras 36 to 38). Write what you remember, and whether he asked for labour. Neither his bill nor Andrejus's shows a call with Andrejus that day. Say who the other two Fishbone names are (I. Bulakevych and R. Drulit?). Renumber when final.]

13. The BBC Wales buildings at Central Square and at Roath Lock are both open at weekends. Most testing and decommissioning work in these buildings is done at weekends, when they are emptier than on weekdays. The draft programme itself shows testing and commissioning starting on Saturday 7 February 2026 (MG2).

13A. On 9 February 2026 Andrejus Prutkovas and I were on site at BBC Central Square. Mr Davidans says the same (his paras 17 to 19 and 42 to 47). [CONFIRM: you told me on 2 November that you were on site on 9 February and that MSEM agrees. Our papers do not yet show it: the van tracker report for 9 to 15 February is missing, no ticket, hotel or call record places you in Cardiff that day, and your phone rang Andrejus at 23:55 that night and at 00:02 and 01:28 on 10 February. Andrejus's phone rang Mr Drulia at 09:19 and Nev at 10:55 and 11:03. Say: how you travelled and when you arrived; where you slept on 8 and 9 February (the Cardiff flat was booked on 3 February for 6 to 13 February, three adults, with Andrejus as a guest); who you saw; what you inspected; whether Mr Davidans showed you gaps, silicone or

panels; whether you met in the BBC cafe; what you asked and what he answered; what was said about more labour (he says he asked for experienced joiners and a mastic operative and that you said Sebastian and Danila would come, his paras 20 and 46); and how long you stayed. Also say whether you were on site on 10 February (his paras 17 and 18). Para 6 and the Chronology of 15 May should then agree. Renumber when final.]

14. On 10 February 2026 Mr Davidans sent me a video and an image on WhatsApp of a damaged panel and asked whether I could get a replacement. The label on the panel was a colour reference. I replied that we did not have one and that I would try to find one. That was the only problem he raised with me in writing. He wrote nothing about problems in the Telegram group (exhibit MG15). At 13:03 that day I telephoned him about the panel. After that call he sent a photograph of the panel label at 13:35 (exhibit MG5).

15. On 3 February 2026 Dainius Drulia, an experienced site manager, started as site manager on a new Fishbone project at BBC Roath Lock (FC2602, BBC Roath Lock Toilets upgrade). Roath Lock is about a 20-minute drive from the Central Square project. Fishbone arranged for Mr Drulia to help at Central Square with the handover, and he worked there from 12 to 15 February 2026. [CONFIRM with Mr Drulia: Mr Davidans says "Danila" started at Central Square on 11 February.] Sebastian Pabis, who had been working for Fishbone in Guernsey, crossed to Portsmouth on 12 February and started work at Central Square on or after 13 February. [CONFIRM the date he first arrived in Cardiff and what he did between 6 and 12 February.]

16. On 12 February 2026 the handover meeting took place. I was not there. I know about it from emails and WhatsApp messages from David Macdonald. At 15:11 that day Dave Newell of j4projects, copying the architects, emailed David Macdonald and Liam Price of EMCOR a list of 16 snagging items "following the snagging meeting today" and wrote: "We will need to delay handover until items 1-16 are complete." David Macdonald forwarded it to me at 15:32 with the words "This is just the start of it." (exhibit MG7). The list includes: cubicles set out from the back wall and the floor set out from the front wall; white shiny silicone to be replaced with matt; panels to be aligned; shadow gaps above the panels to be made good; bubbles on the cubicle doors; and damaged edges. As additional or to-follow items it lists fitting the sign, door stops, five handles and grey seats. The Telegram chat shows that at 16:07 that day Andrejus Prutkovas posted in the project group, of which Mr Davidans was a member, the snagging list as a PDF file, "Cardiff snagging list following site review 12th Feb 2026", with the words "I am sharing 'Cardiff snagging list following site review 12th Feb 2026' with you" (exhibit MG15). The list has 20 items and 13 photographs. Andrejus Prutkovas's phone record shows that at 16:29 he called Mr Davidans for 1 minute 52 seconds (exhibit MG16). [CONFIRM with Andrejus: why he posted it; what was said on the call. The chat cannot show whether Mr Davidans opened the file. Mr Davidans says nobody at Fishbone sent him the list directly and that Danila

passed it on by WhatsApp (his para 60). Say how you know all this: from the chat and the bill, or from Andrejus. His statement should say it first-hand.]

17. On 13 February 2026 I took part in a Teams meeting called by Dave Newell, with Liam Price of EMCOR and David Macdonald, about the snagging and how and when it would be finished. The invitation was sent to me at 11:47 that morning for 14:00 to 14:30 (exhibit MG14). I took part on my way to Cardiff. I arrived in Cardiff that night, and I was not on site on 13 February. [CONFIRM: that you joined at 14:00, where you were travelling from, and why Andrejus Prutkovas had a room booked at Travelodge London Kings Cross for the night of 13 February.]

18. The sign was not available to fit. On 19 February 2026 David Macdonald wrote that it was "not sent to site as yet", and Andrew Macdonald wrote that it was being finished and should be on site early the following week. On 23 February 2026 David Macdonald asked that the main toilets be completed for the Wednesday (exhibit MG8).

19. At 14:07 on 13 February 2026 Mr Drulia wrote in a WhatsApp group of Andrejus Prutkovas, Mr Drulia and me that Mr Davidans had already left ("Misha jau sjibalsa"; a translation is needed) (exhibit MG18). Mr Drulia and Mr Pabis later told me that Mr Davidans had left the site and, in their words, had finished his ten-week project. Those were their words. They also told me that he had been on site on 13 February and had left that day. [CONFIRM: the 14:07 message shows he had already left by 14:07 on 13 February, which fits his emails at 12:57 and 13:38 and his 16:05 "on the way home" (he left between about 13:40 and 14:07). I read "sjibalsa" as coarse slang for "cleared off": get a certified translation and Mr Drulia's own account of when and how he saw him leave. Mr Drulia also sent four photographs in the same group at 10:19 that morning and you replied with emojis at 10:21: say what they show and where (Central Square?) and get the originals from his phone. The group is called "Fishbone Secrets" and the tone is joking and coarse, so take advice before you rely on it. Also, when and how each of them told you (by telephone, or in person at the site on 17 February; you told me on 2 November that you were not on site on 14 February, so the 14 February date is removed), and which of them told you each thing. Andrejus says Mr Drulia texted him on 13 February that Mr Davidans had left the site. "Around noon" is removed: Mr Davidans's own emails of 12:57, 13:38 and 16:05 on 13 February, and his booking of parking for Mr Pabis from 13:00, suggest he was still working that afternoon, and Mr Pabis only arrived from Guernsey after 12 February. Ask Mr Drulia and Mr Pabis for what they saw themselves.]

19A. On 17 February 2026 Andrejus Prutkovas and I went to the site at Central Square and met David Macdonald and Dave Newell. [CONFIRM: your own recollection of the meeting. Andrejus says in his draft statement that Liam Price was also there; that Mr Drulia, Sebastian Pabis and Anton Kogut were on site replacing skirting boards and repairing panels; that Mr Davidans was not there; that Macdonald, Newell and Price said they were not satisfied with the quality (large gaps between panels, skirting not cut at 45 degrees, shadow gaps); and that you

were given a further eight days to put the work right. Say what you remember, in your own words, and what time you arrived. No email in our file records the meeting; the emails of 19 and 20 February about the sign and of 23 February ("completed for Wednesday", which is 25 February, eight days after 17 February) fit it. Check with David Macdonald, Dave Newell or Liam Price. Renumber when final.]

After he left

20. Mr Davidans did not tell me he was leaving, and I did not tell him to leave or to go home. [CONFIRM: his own phone bill (MD14) shows no call from his phone to yours or to Andrejus's on 13 February. Check your outgoing calls and Andrejus's for 12 and 13 February before you sign this sentence.] On 18 February 2026 I asked him by WhatsApp where the toilet signage was. He did not reply. [CONFIRM: his phone bill shows a one-minute call from his phone to yours at 14:24 that day. Say whether you spoke.] On 22 February he messaged to ask when he would be paid. On 23 February I replied that Fishbone's payment was held until handover. On 27 February he asked again, and I replied that we would hand over on the Monday and then call to discuss how to close the matter. He replied "Ok, thanks." (exhibit MG5, with a translation of the Russian messages).

The invoices

21. MSEM invoiced Fishbone weekly. Invoice 552 was paid on 13 February 2026. Invoice 553 dated 8 February 2026 for £1,898 and invoice 554 dated 15 February 2026 for £1,891 are unpaid (exhibit MG3). I accept that Mr Davidans worked on site on the days in invoice 553, 2 to 6 February 2026, and on the days in invoice 554, 9 to 13 February 2026. I have no site register for 9 to 13 February. I was told on 14 February that he left site on Friday 13 February. On other Fridays he left around noon, as I say in paragraph 5.

22. Fishbone has withheld both invoices because of the defects in the work and the cost of putting them right. I disputed the invoices in writing on 18 March 2026 (exhibit MG9). [CONFIRM: whether any photographs, reports or invoices were sent to MSEM after Egita Davidane asked for them on 18 and 27 March 2026. He says none were.]

The counterclaim

23. From 13 February to 1 March 2026 Fishbone paid for labour and materials to put right the work at Central Square. The costs are (exhibit MG10): Snag Doctor £530.00; Anton Kogut £1,400.00 (£600.00 for 13, 14 and 15 February, and £800.00 for 16, 20, 21 and 22 February); Dainius Drulia £2,300.00 (Central Square days only, from 13 February; his day on 12 February is not claimed); Sebastian Pabis £3,730.69; Raitis Bikovs £112.50 (overtime at Central Square on Monday 16 February 2026); and Oleksii Starovoitov £308.75 (Monday 16 February, one day at £190 and five extra hours at £23.75). The total is £8,381.94 before VAT and CIS. All the bills have been paid from Fishbone's bank account: those of Snag Doctor, Mr Kogut, Mr Bikovs and Mr Starovoitov, and Mr Drulia's

bills for the weeks ending 22 February and 1 March (paid on 6 and 13 March 2026). Mr Drulia's bill for the week ending 15 February was settled from an advance of £3,000 that he asked for and that Fishbone paid to him on 22 November 2025; £1,250 of the same advance was deducted from his bill for the week ending 22 February (exhibit MG10). Mr Pabis is not a subcontractor. He is employed by Fishbone on a fixed weekly wage, paid through payroll every week, including 13 February to 20 March 2026 (exhibit MG10). He worked 14 days and 3 hours at Central Square from 13 February to 1 March 2026. The cost to Fishbone of those days is his wages for them, £3,220.00, plus employer's National Insurance of £414.10 and employer's pension contribution of £96.59, which I have confirmed from his payslips: £3,730.69 in all. Mr Kogut's invoice dated 24 February 2026 says it is for January. That is a mistake: the dates are in February.

24. Fishbone's counterclaim is for £7,997.25, as stated in its Defence and Counterclaim. If the Claimant's claim of £3,031.20 (invoices 553 and 554 after CIS) were allowed, the net amount of the counterclaim would be £4,966.05.

Statement of truth

I believe that the facts stated in this witness statement are true. I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

Signed: _____

Mindaugas Gaudiesius

Date: _____

Exhibits

- MG1 Site register photographs, 2 December 2025 to 6 February 2026
- MG2 Draft programme, BBC Cardiff L4 WC Remodel, 19 November 2025
- MG3 MSEM invoices 545 to 554
- MG4 Torin Construction bills, BBC Cardiff lines marked
- MG5 WhatsApp chat with Mr Davidans, 3 February to 12 July 2026, with translation
- MG6 O2 call records, calls to Mr Davidans only
- MG7 Email of 12 February 2026 15:11 and snagging list
- MG8 Emails of 19 and 23 February 2026
- MG9 My email of 18 March 2026 and the reply
- MG10 Rectification bills and proof of payment; Mr Pabis's timesheets, payslips and wage payments (bank details redacted)
- MG11 Emails of 24 November 2025 (pre-start meeting, start date, site managers) and 1 December 2025 (inductions, site contacts, site set-up delivery)

- MG12 Emails of 4 and 6 February 2026 (final site meeting on Thursday 12 February)
- MG13 Emails of 7 and 12 January 2026 (site management, Roath Lock foreman)
- MG14 Teams invitations of 13 February 2026
- MG15 Telegram group chat "FC2520 BBC Cardiff - toilet refurb project", exported 24 October and 2 November 2026, with the snagging list PDF posted on 12 February 2026 (photographs and videos on request)
- MG18 Screenshot of the WhatsApp group of Andrejus Prutkovas, Mr Drulia and me, 13 February 2026 (messages at 07:31, 10:19, 10:21 and 14:07; full export of the group to be obtained)
- MG17 Telegram group chats FC2516 WoS Tissot Stratford, FC2512 Parfums de Marly and FC2602 BBC Roath Lock Toilet upgrade, exported 2 November 2026 (other people's names and photographs redacted)
- MG16 Andrejus Prutkovas's O2 itemised bills dated 21 January and 21 February 2026, calls to Mr Davidans only (all other numbers redacted; his written consent needed)

Notes for Minda on statement v0.8 (not part of the statement)

Prepared by Victoria, 2 Nov 2026. v0.8 is v0.7 changed by what the collected emails show. Nothing is signed, filed or sent. Not legal advice. Every [CONFIRM] note in the text must be answered and deleted before you sign.

Changed in v0.8 and why - **Para 3:** adds the 24 Nov 2025 email, which names you and Mikheil as site managers and gives 1 Dec as the start date (new MG11). Reason: MSEM holds the same email. - **Para 6:** the J4 "telephone, not in writing" sentence is replaced by the emails of 4 and 6 Feb (Newell to Macdonald; Macdonald to you; your "Yes, Thursday perfect") (new MG12). "Started on 1 December" is now supported by the 1 Dec inductions (MG11). The 9 Feb cancellation is not shown in any email. - **Para 7:** Bikovs. His own invoice emails put him on the Roath Lock kitchens every week; "Wednesday toilet refurbishment BBC central" is in his email of 17 Feb (the week to 15 Feb, so Wed 11 Feb) and "Monday BBC Central 5 hours overtime" is in his email of 24 Feb (week to 22 Feb, so Mon 16 Feb). That fits Mikheil's "Raitis around 10-11 Feb". Your £112.50 is the 16 Feb overtime. **Corrected 2 Nov, late (and you told me he started on Central Square, moved to Roath Lock on 8 Dec, and the Torin joiners arrived at Central Square that day, which matches the register):** the sign-in sheets show "Raitis" (FB) at Central Square on 2, 3, 4 and 5 Dec (07:30 to 14:30, 15:45, 16:00 and about 13:00), so he was not there only on 11 and 16 Feb. You confirmed on 2 Nov that "Raitis" on the register is Raitis Bikovs. - **Para 9:** adds Liam Price's 7 Jan email and Macdonald's 12 Jan reply naming Starovoitov as Roath Lock foreman (new MG13). Mikheil's "about two weeks after start" is contradicted by the 7 Jan email. - **Para 15:** removes "where Sebastian Pabis was also working" (he was in Guernsey until 12 Feb: Premier Inn 29 Jan to 6 Feb, then the ferry booked 11 Feb, 12 Feb 08:15 to 15:45). - **Para 17:** adds the Teams invitation (sent 11:47, 14:00 to 14:30) (new MG14). - **Paras 19 and 21:** "around noon" removed. Mikheil's 12:57, 13:38 and 16:05 emails, Sebastian's parking from 13:00, and Pabis only reaching Cardiff after 12 Feb. - **Para 20:** two checks added from his phone bill (MD14): no call from his phone to yours or Andrejus's on 13 Feb; a call at 14:24 on 18 Feb. - **Para 9A (new, rewritten 2 Nov evening):** your visit of 2 and 3 Feb (see above). You told me on 2 Nov that you and Andrejus visited the site on 2 Feb and drove up in NJ17CYK; the Radius tracker (about 08:00 to 15:00 on 2 Feb, back north 3 Feb) and Andrejus's Cardiff Travelodge for 2 Feb support it. The Chronology's "9 February" visit is probably this one. The paragraph has to be written from what you remember, so it is empty until you answer. - **Para 22:** asks whether documents were sent after 18 and 27 Mar. - **Para 13A (new placeholder, 2 Nov evening):** you say you and Andrejus were on site on 9 Feb and that MSEM confirms it. Our own papers do not show it yet, so the paragraph lists what to supply (travel, where you slept, who you saw, what was said about labour). - **Para 8 (added 2 Nov, late evening):** the empty Delivery topic: you created it on 1 Dec so the site manager posts a photo of every delivery as proof; other Fishbone projects use it (Parfums de Marly 20 delivery posts, Roath Lock Toilet upgrade 27); Mikheil was site manager on Tissot Stratford (Oct to Nov 2025) with the same topics and no deliveries were recorded there by anyone either, which MSEM may use; he posted nothing in it on this job. This is why there is no record of when the doors and Venesta panels arrived. The export has 20 posts in Sign-in, 6 in Site diary, 104 in Progress pictures and none in Delivery. MSEM may say you never checked the topic during the job. - **Sign-in comparison across the four chats (2 Nov, late evening):** Central Square (Mikheil, 2 Dec to 12 Feb, about 53 working days): sign-in posts on 18 days, progress posts on 16 days, posted in the morning (07:21 to 12:38), last sign-in post 6 Feb, none 22 Dec to 6 Jan. Tissot Stratford (Mikheil as site manager, 22 Oct to 21 Nov, 23 working days): sign-in posts on 8 days, progress on 10 days, mostly posted at night (21:06 to 23:40, and 01:34), last sign-in post 13 Nov, eight days before the last post of the chat. Parfums de Marly (Nerijus Melenis): sign-in on 25 of 32 working days plus weekends, early morning (from 06:27), 20 delivery posts on 8 days. Roath Lock toilets (Dainius Drulia and Alex, 3 to 27 Feb, 19 working days): sign-

in on 1 day, delivery posts 27 on 6 days. Points: (1) Mikheil never posted daily on either of his jobs, so "every day" in para 8 is what you agreed, not what he did, and MSEM can say you accepted it for ten weeks without complaint; (2) on both of his jobs his sign-in posts stop before the end (Tissot 13 Nov; Central Square 6 Feb, the Friday before the last week), which fits your point that there is no register for 9 to 13 Feb; (3) Dainius Drulia posted sign-in on one day only, so MSEM can say Fishbone does not insist on daily sheets; (4) one sheet photograph covers several days (the 6 Feb post shows 2 to 5 Feb as well), so post days understate what the sheets cover. I have now read all 20 sign-in photographs: see the next bullet, which corrects points (1) and (4). - **The 20 sign-in sheets read (2 Nov, late):** the photos are of the same Macdonald daily attendance register, so each one shows all rows so far. Mikheil signed in on 2, 3, 4, 5 and 8 to 12 Dec, 15, 17, 18 and 19 Dec; 5 to 9 Jan, 12 to 16 Jan, 20 to 23 Jan, 26 to 30 Jan; and 2 to 6 Feb: 37 of 39 working days (not 16 Dec or 19 Jan, which are on no photograph). So his register was kept almost daily; what was not daily was posting the photos. 2 Dec: he signed in as company "Macdonald" and on 3 to 5 Dec as "MD/FB"; from 8 Dec as FB. Fishbone headcount: 2 to 5 Dec Mikheil and "Raitis" only; from 8 Dec Mikheil, I. Bulakevych and R. Drulit every day (Torin joiners). Friday sign-outs: 5 Dec about 13:00, 12 Dec 13:00 (all three), which supports your para 5 (he left around noon on Fridays); later Fridays have no sign-out time. Typical times: in 07:15 to 07:35, out 15:00 to 16:00 (15 Jan 18:10; 5 Feb about 17:30). 3 Feb: his out time reads about 15:45, so the visit by you and Andrejus at Central Square was before then (check against your own account). We hold no sheet for 9 to 13 Feb; the last one ends 6 Feb. MSEM may say the register supports his attendance and the team strength. - **Shared info@ mailbox (2 Nov, night):** you and Andrejus both use info@; it carries two signatures, and its sender name shows as Mindaugas Gaudiesius because you set it up, so the sender line does not show who wrote an email. I checked the sign-offs on the 38 emails sent from info@ in the collected file: the ones v0.8 relies on are signed "Minda" (5 Feb 11:26, 6 Feb 13:01, 19 Feb 09:35 and 10:00, 23 Feb 12:58) or "Mindaugas Gaudiesius" (18 Mar 10:34), and 28 Nov, 1 to 15 Dec, 6 Jan and 9 Jan are signed Minda. Two are signed by Andrejus: 7 Nov 2025 (HSS Proservice) and 18 Dec 2025 (tea point snagging, to Macdonald); v0.8 does not use either. If MSEM asks who wrote an email, the sign-off is the answer. Say in your statement that info@ is shared and carries both signatures. Andrejus's para 14 should say he saw the snagging list in info@ (David Macdonald, 15:32 forward), not that he received it from the client. - **Paras 19 and 19A (2 Nov, night):** you confirmed Andrejus is right that you both went to site on 17 Feb to meet David Macdonald and Dave Newell. Para 19 no longer says you went to site on 14 Feb with Andrejus: you corrected yourself later on 2 Nov, you were not on site on 14 Feb, the visit with Andrejus was 17 Feb (para 19A). What Mr Drulia and Mr Pabis told you is now undated, with a [CONFIRM] on when and how. New para 19A is the 17 Feb meeting, built on his account; the eight further days fit the 23 Feb Macdonald email. Not yet reconciled with Andrejus: Drulia's start date (10 Feb in his draft, 12 Feb in para 15), the 9 Feb labour request, the size of the job, and the 9 Feb return. - **Dainius's screenshot (2 Nov, night; WhatsApp group "Fishbone Secrets": Dainius, Kilka/Andrejus and you):** 13 Feb 07:31 Kilka forwards a joke about 15 men on the job; 10:19 Dainius sends 4 photographs (1.4 MB, not downloaded in the screenshot, blurred); 10:21 you reply with emojis; **14:07 Dainius: "Misha jau sjibalsa" (Misha has already gone, in coarse slang)**. So Mikheil had left by 14:07, not "around noon" and not after 16:05. This is also the "text message" Andrejus mentions in his para 17: it went to the whole group, including you, not just to him. Needs: a full export of the group (13 to 17 Feb at least), a certified translation, the original four photographs, and Dainius's own statement. Risk: the group name and tone; MSEM sees the whole group if you rely on it. - **Para 11 (reworded twice, 2 Nov evening):** says what you thought on seeing the 6 Feb photographs: a small job left. The dark panels behind the toilets are part of the toilet system and were in place; the white panels (Macdonald Joinery) and five doors were still to fit; fitting takes two operatives three days at most; you asked him if he could finish on 3 Feb, on the 5 Feb call and on each call before 12 Feb. Open points: what he answered each time, when Macdonald delivered the doors and whether any door defects are Macdonald's (they made the doors), and

who did the set-up and quality checks that caused the gaps (he says he was not an installer). Visit dates settled 2 Nov: arrived Cardiff 2 Feb, Roath Lock that evening, Mikheil not seen that day; 3 Feb 3 to 4 hours at Roath Lock with Dainius Drulia, then you and Andrejus visited Mikheil at Central Square and asked about completion (para 9A). - **Telegram findings (added 2 Nov, from `ChatExport_2026-10-24` in Raw; Kilka is Andrejus, "Misa goga" is Mikheil, "Raitis Latishka" is Raitis Bikovs):** - **Para 7:** spelling is now Bikovs. He was added to the Central Square group on 2 Dec and posted a video on 5 Dec ("clean site safe site"). That sits badly with "Central Square only on 11 and 16 Feb", so the paragraph asks where he worked on 2 to 6 Dec. - **Para 8:** group members; about 21 posting days (2, 4, 5, 8, 9, 10, 12, 15, 18, 19, 20 Dec; 7, 9, 13, 16, 22, 23, 27, 30 Jan; 4 and 6 Feb), photos and videos only, no message from him about defects, nothing 7 to 12 Feb. Mikheil's para 50 says he sent material "throughout this period". You exported the full chat again on 2 Nov: the same 164 entries, ending 12 Feb 16:07, so the chat is complete and silent after that. The 2 Nov export shows the snagging list PDF as an attachment (the 24 Oct export showed only the words) and shows his name as "Misa Davidans" (24 Oct: "Misa goga"; Telegram shows the current name). Use the 2 Nov export as MG15. - **Para 12A (new):** 6 Feb sign-in post at 15:25 and his 15:35 call, with a question for you about what was said. - **Para 14:** adds that he wrote nothing about problems in Telegram. - **Para 16:** the 16:07 post by Andrejus (a PDF of the 20-item list) and his 16:29 call to Mikheil (1m 52s) against Mikheil's para 60. This must come from Andrejus himself or from the exhibits. - **Exhibits MG15 and MG16:** new. MG15 has other people's names and photos. MG16 is Andrejus's own bill; get his consent and redact everything except calls with Mikheil. Neither is in Git. - I have viewed one photo only (6 Feb sign-in sheet). I have not checked the rest for visible defects.

Still open from v0.7: the 22 Nov 2025 advance of £3,000 (you must be able to swear to it); Rachel's £1,500 payment to Drulia on 2 May 2026; Kogut's confirmation (his own emails carry January dates); Alexey on the QuickBooks correction for Pabis; redacted payslips for MG10.

Not in this statement, on purpose: the 30 Jan meeting detail beyond para 10; any 9 Feb visit in detail (now a placeholder, para 13A: you say you were on site on 9 Feb and MSEM agrees, but none of our documents shows it yet); the Chronology's "several calls"; anything on 8 Feb.

Exhibits to build: MG11 to MG14 are new (emails in the Central Square email file). MG1 to MG10 as before.

Earlier notes from v0.7 and before (kept for reference)

Prepared by Victoria, 27 Oct 2026; v0.7 on 2 Nov 2026 (para 23: Drulia's 12 February day is stated as not claimed). Filing version v0.6 (v0.5 with para 23 updated after Rachel's second AWT-1029 update: Pabis payslips and Drulia's advance). Nothing is signed, filed or sent. Not legal advice.

Changed in v0.5 (para 23): Mr Pabis is now stated as an employee on a fixed weekly wage, with his cost for 13 Feb to 1 Mar at £3,634.09 (wages £3,220.00 plus estimated employer NI £414.09), not £4,025.00 of bills. The total becomes £8,285.34. Source: Rachel's note "2026-10-27_Rachel-to-Victoria_AWT-1029_Pabis-employment-cost-basis-v2.md" (Drive 17ptJhxDT1xQYGdCXLHE3Cwl7ghewrdpP). His QuickBooks "bills" were timesheets entered in error, so they are not exhibited as invoices. Para 23 says nothing about the 2024-25 pay outside payroll (Rachel's point 4: you are putting it to Alexey at AGGA).

Figures now (v0.6): the whole window is evidenced at £8,381.94 (Snag Doctor 530.00; Kogut 1,400.00; Drulia 2,300.00; Pabis 3,730.69 = wages 3,220.00 + employer NI 414.10 + employer pension 96.59, confirmed from 7 payslips; Bikovs 112.50; Starovoitov 308.75). Drulia's w/e 15 Feb £690 is settled from

the £3,000 advance paid 22 Nov 2025 (you confirmed he asked for it). Para 24 claims £7,997.25, which is £384.69 below the evidenced total, so the claim stands as it is.

Still to do before you sign: (a) you must be able to swear to the 22 Nov 2025 advance of £3,000 (Rachel's note, section 7); (b) Rachel's £1,500 payment to Drulia on 2 May 2026 (no bill, coded FC2602) is still unexplained: it is not in the statement, but MSEM may ask; (c) Mr Kogut's confirmation of his invoice; (d) Alexey's confirmation on the QuickBooks correction for Pabis, before disclosing; (e) your approval of the Pabis wording; (f) redacted payslips are in Raw (7 files) for MG10.

Changed in v0.4 (para 23): "all these bills have been paid" removed. QuickBooks proves £3,961.25 paid. Two items are open and marked [TO CONFIRM]: Pabis £4,025.00 (you say he was paid by salary; his bills are open in QuickBooks and he is charged at £280 a day, but his payroll net is about £525.47 a week, so the amount actually paid for 13 Feb to 1 Mar must be checked before you swear to £4,025.00) and Drulia £690.00 (you are checking the bank; Rachel saw an unlinked £1,500 payment on 2 May and a £1,250 "advance" with no record). Remove the brackets once confirmed.

Left out of this version (not confirmed, or not yours to say): 1. The 9 February visit (old para 8): you did not remember being there. [Changed 2 Nov evening: you now say you were on site on 9 Feb; see para 13A.] The 9 February snagging meeting did not take place (para 6). The visit in your Chronology is not covered. 2. The Chronology's "several telephone discussions" of 2 to 6 February with you and Andrejus: your records do not support it. 3. Who attended the 12 February review, and Mr Davidans's presence on 12 February: you were not there and we do not have David Macdonald's WhatsApp messages for those dates. 4. The 3 February visit, until you tell me what happened. 5. Your offer to settle, and anything "without prejudice". 6. The "other recent weekend project in the building": no name or proof yet.

Check before you sign (each is a sentence you must be able to swear to): - Para 6: "started on site on 1 December 2025" (you said 1 Dec, then 2 Dec, then 1 Dec; the register photographs start on 2 Dec); and the exact day of J4 Projects's telephone call about the 9 February meeting (you remember only the week before handover). - Para 10: that the 30 January meeting happened (you were not there); the sentence rests on the Chronology. - Para 15: that Fishbone "arranged" Mr Drulia (who asked him is open). - Para 16: that the 12 February review happened as stated (from emails and WhatsApp messages). - Para 19: what Mr Drulia and Mr Pabis told you. They should confirm it in writing. - Para 21 and 23: the payment of each bill, with proof from Rachel (AWT-1029). - Para 23: Mr Kogut's corrected invoice or written confirmation.

Differences with your Chronology (sent to the court on 15 May) - It says you and Andrejus visited on 9 February. You now say you were on site on 9 February, and MSEM agrees, so the Chronology's 9 February date may stand. Para 13A is a placeholder until you answer; the snagging meeting planned for that day did not take place (para 6). - It says the handover inspection was on 12 February. Here too: the handover meeting was held on 12 February, a day before the planned 13 February. - It says Mr Davidans left after the 12 February inspection. Here: Mr Drulia and Mr Pabis told you he was on site on 13 February and left around noon. - It says he "ceased communication". Here: he messaged on 22 and 27 February about pay. Whether to correct the Chronology is for the court office or an adviser.